

rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

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Estate of Connie Ann Alric

25PR000148

FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF COMPENSATION TO ATTORNEYS FOR ORDINARY SERVICES, FOR A RESERVE, AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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Estate of Adele Ann Casten

25PR000290

[1] PETITION HEARING FOR INSTRUCTIONS REGARDING THE VALIDITY OF ADELE CASTEN’S APRIL 19, 2019 AND MAY 3, 2019 WILLS

TENTATIVE RULING: The Court finds from the facts presented in the Petition that the presumption of fraud or undue influence arising under Probate Code section 21380 applies to the Last Will and Testament of Adele Casten dated May 3, 2019, and lodged with the Court on May 19, 2026 (May 3, 2019, Will). However, the Court finds, in the matters set forth in the Statement of Facts filed August 3, 2026, by Claire Fahlstrom, “clear and convincing evidence, that the donative transfer was not the product of fraud or undue influence.” (Prob. Code, § 21380, subd. (b).)

Based on the foregoing, the Court finds good cause for ruling that the May 3, 2019, Will is a valid testamentary instrument. Moreover, the Court is prepared, on the same grounds, to find MOOT the request to determine the validity of the Last Will and Testament of Adele Casten dated April 19, 2019. However, all interested parties have the right to appear and object to the Petition orally or in writing at the hearing. (See Prob. Code § 1043.) Also, if any interested party appears to “request time for filing a response to the petition, for discovery proceedings, or for other preparation for the hearing,” the Court is required to grant a continuance (Prob. Code, § 852.)

[2] AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

APPEARANCE REQUIRED.

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